

Rule No. 34

Sheet 1

PROVISION OF UTILITY RIGHT-OF-WAY INFORMATION

A. PROCESS FOR PROVISION OF REAL PROPERTY INFORMATION

1. Purpose

This portion of the rule addresses the process for third parties to obtain information about SoCalGas land rights and related information concerning real property on a nondiscriminatory basis. This information could include publicly recorded information and SoCalGas proprietary and non-proprietary information.

2. Types of Information Addressed

This rule pertains to information pertaining to SoCalGas rights-of-way ("ROW") and fee-owned property, and includes recorded information like grant deeds, easements, records of survey, and assessor records; information not recorded and not deemed confidential in nature like licenses, certain route surveys, engineering drawings, topographical maps, and structure data; and information not recorded but deemed either proprietary, security sensitive, or otherwise confidential like facilities maps, alignment maps, and structure capacities.

3. Point of Contact

Requests for the foregoing information should be in writing and directed to the following:

Southern California Gas Company
Land & Right of Way Group
c/o Sempra Energy
Land & Right of Way Manager
555 W. Fifth Street
Los Angeles, CA 90013-1011

4. Contents of Request for Information

A written request for information needs to contain the following:

- a. Name, address, and daytime phone number of requestor.
- b. Specific document or type of information being requested i.e., the legal description of the subject real property, APN or street address sufficient to identify the property, easement document, type of engineering drawings, drawing type, survey or map type.
- c. The date by which information is needed (although allow sufficient time to be consistent with Section A.6., below).

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Sheet 2

PROVISION OF UTILITY RIGHT-OF-WAY INFORMATION

(Continued)

A. PROCESS FOR PROVISION OF REAL PROPERTY INFORMATION (Continued)

4. Contents of Request for Information (Continued)

- d. An inadequate request for information will be returned without action, with an explanation as to why it was not acted upon.

5. Criteria Used to Process Request for Information

- a. Only one request per week per requestor will be processed under this tariff.
- b. The information requested must be reasonably accessible from SoCalGas' files. It will also be reviewed to determine whether it is publicly available information; whether it requests any sensitive or confidential information related to things such as system security, safety, pending legal action, or specific confidential customer information, and whether it contains any SoCalGas proprietary information relative to existing contract or acquisition negotiations or other such highly confidential information or documentation.
- c. If the requested information or documentation is publicly available, then no nondisclosure agreement will be required. If the information or documentation is sensitive or confidential but release will not prejudice SoCalGas' legal or property rights, then SoCalGas, at its sole discretion, may require the requesting party to execute a nondisclosure agreement pertaining to the sensitive or confidential information as a condition precedent to releasing it to the requesting party. If the information pertains to sensitive contract negotiations or SoCalGas competitive proprietary information then SoCalGas, at its discretion, can refuse to release such information or release it under adequate protective arrangements of its choosing. Confidential customer information will not be released without the customer's prior written approval.
- d. NO WARRANTIES will apply as to any of the information provided. SoCalGas makes no warranty, representation or guaranty (1) that it has identified all maps, surveys, or other requested documentation which is in its possession, (2) as to the completeness or accuracy of any information provided, or (3) that the information or the property which is the subject of the information is suitable for the use intended. SoCalGas will not be liable for any damages due to delays in getting the information, but SoCalGas will make reasonable efforts to meet required time frames. All information, maps, or data will be stamped with appropriate language reflecting this disclaimer.

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Sheet 3

PROVISION OF UTILITY RIGHT-OF-WAY INFORMATION

(Continued)

A. PROCESS FOR PROVISION OF REAL PROPERTY INFORMATION (Continued)

6. Timing and Costs Charged to Satisfy Request for Information.

- a. When the request is received, SoCalGas will provide an estimate of time and cost required to respond to the request for information. Those estimates will not be binding on SoCalGas.
- b. Normally requests for information pertaining to public records will require 10 days for processing. In certain cases, public records or other information may take longer depending upon numerous factors including the age of the information or documentation and the quantity of information or documentation requested. SoCalGas may elect to hire a contractor, at requesting party's expense and upon requesting party's concurrence, to perform extensive or otherwise time-consuming searches. Except under unusual circumstances, SoCalGas will fully respond within 30 days from receipt of a fully completed written Request for Information (see Section A.4., above).
- c. Upon receipt of the information requested, the requesting party shall pay to SoCalGas the fully loaded labor costs and materials costs incurred by SoCalGas for each employee used to gather and produce the information. The fully loaded labor costs shall be billed in quarter-hour segments for each SoCalGas employee used to gather and/or produce the information. Materials will be billed at SoCalGas' costs. Costs of outside contractors will be reimbursed in full (actual cost).

7. Notification Process

As directed by the requesting party, the completed package of information will either be delivered in person at SoCalGas' offices or by mail directly to the requesting party. The requesting party shall pay SoCalGas' actual costs incurred for such delivery.

B. CONFLICT CHECK AND COMPATIBILITY CONFIRMATION PROCESS

1. Purpose

This portion of the rule describes SoCalGas' conflict check process ("Conflict Check") which SoCalGas follows when third parties voluntarily request information on SoCalGas facilities and property rights in delineated portions of real property. SoCalGas will continue to locate and mark its facilities as required by Government Code Sections 4216 et seq., and third parties will be required to comply with those provisions as well. This conflict check service is being offered by SoCalGas to accommodate third parties' requests for information additional to that provided by the underground service alert provisions. It is not required that third parties' use this service, and it is not a substitute for compliance with the underground service alert provisions in the Government Code.

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Sheet 4

PROVISION OF UTILITY RIGHT-OF-WAY INFORMATION

(Continued)

B. CONFLICT CHECK AND COMPATIBILITY CONFIRMATION PROCESS (Continued)

2. Types of Situations Addressed

This process shall be followed by SoCalGas whenever a third party voluntarily requests information from SoCalGas about SoCalGas real property interests and/or SoCalGas present or future facility installations in delineated areas of real property in which the third party also has real property interests and/or intends to install facilities or improvements. The purpose of this Conflict Check process is to provide information to the requesting party as to potential conflicts between its intended use or uses and SoCalGas present or future uses. The Conflict Check transfers no interest or property right. It is for informational uses only.

3. Point of Contact

Third party requests for Conflict Checks should be in writing and directed to:

Southern California Gas Company
Land & Right of Way Group
c/o Semptra Energy
Land & Right of Way Manager
555 W. Fifth Street
Los Angeles, CA 90013-1011

4. Contents of Requests for Conflict Check

The written request for Conflict Check needs to contain the following:

- a. Name, address, and daytime phone number of requestor.
- b. Real property legal description identifying specific real property affected and, if so desired by requesting party in order for SoCalGas to confirm the existence, or lack thereof, of present or future conflicts, drawings showing the location, depth and size of requesting party's future facilities, uses, and/or improvements, as well as access to and from, cuts, fills, and other potential impacts, in as much detail as possible.
- c. If available, information that addresses how the future uses, facilities, or improvements will be built (i.e. method of construction), used, operated, and maintained including type of equipment or vehicles needed to build and maintain them. All access roads should be described in detail. All necessary environmental mitigation required to construct and maintain the future uses, facilities, and/or improvements should be described in detail.

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(Continued)

B. CONFLICT CHECK AND COMPATIBILITY CONFIRMATION PROCESS (Continued)

4. Contents of Requests for Conflict Check (Continued)

- d. The date by which the Conflict Check is needed. NOTE: SoCalGas will make reasonable efforts to meet requestor's schedule once all the above information is supplied in full, but does not warranty or guarantee timeliness and will not be liable for any damages if unable to meet requestor's schedule.
- e. Inadequate Requests for Conflict Check will be returned without action, with an explanation as to why the Conflict Check was not performed.

5. Criteria Used to Process Request for Conflict Check

- a. SoCalGas provides this service as a convenience to third parties that desire input on SoCalGas uses of its land rights which might be in conflict with the requesting party's improvements. SoCalGas will use its best efforts to determine if a present or future conflict exists or will exist. However, NO WARRANTIES, REPRESENTATIONS, OR GUARANTEES will be provided as to any of the information or the completeness or accuracy of the information. All information provided will be stamped with appropriate disclaimers.
- b. This tariff does not address how conflicts determined through this Conflict Check process will be resolved. Such resolution will be accomplished, if at all, through individual negotiations between SoCalGas and requesting party. However, one methodology for resolving such conflicts is entering into a "Consent to Common Use Agreement", SoCalGas Form No. 6679.
- c. In performing its Conflict Check service, SoCalGas' interest will be to maintain its present and future facilities and assets in a safe and reliable manner consistent with its public utility obligations.

6. Notification Process and Related Information

- a. Within a reasonable time after SoCalGas has received a completed Request for Conflict Check, SoCalGas will notify the requesting party as to conflicts which it believes might exist now or in the future in a reasonable amount of detail.
- b. SoCalGas' notification will be sent by U.S. Mail, or if requested by requesting party by courier (at requesting party's expense). Or, the notification may be made available for pick-up at SoCalGas.

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(Continued)

B. CONFLICT CHECK AND COMPATIBILITY CONFIRMATION PROCESS (Continued)

6. Notification Process and Related Information (Continued)

- c. The more extensive the area of real property affected by the Conflict Check request, the more time required by SoCalGas prior to notification.
- d. SoCalGas' Conflict Check will only be as to the lack of conflict and/or compatibility between the requesting party's improvements and/or use and SoCalGas' ROW and the present and future uses of its ROW. It is the requestor's responsibility to obtain any necessary approvals from the underlying fee owner, other users of the affected real property, and governmental entities.

7. Timing and Costs Charged to Process Request for Conflict Check

- a. When SoCalGas receives a fully completed Request for Conflict Check it will provide the requesting party an estimate of the time required to complete the work. However, this will only be an estimate and not a time deadline. SoCalGas will use its best efforts to complete the Conflict Check within a reasonable time given the nature of the requesting party's improvements, the amount of real property involved and whether it is longitudinal or latitudinal.
- b. Because providing the Conflict Check service is beneficial to SoCalGas by identifying potential safety and reliability related conflicts before they occur, SoCalGas will not charge for this service unless SoCalGas is required to incur incremental costs such as overtime hours or to retain outside contractors in order to process particularly large or complicated property reviews. In those cases where it can be anticipated that incremental costs will be incurred, the requesting party will be notified of the fact that SoCalGas considers its request to be extraordinary and will provide to the requesting party an estimate of the actual incremental costs (fully loaded labor and materials costs) SoCalGas will charge the requesting party to provide a Conflict Check. Upon approval of the requesting party of the estimate, SoCalGas will conduct the Conflict Check. In consideration therefore, the requesting party will pay SoCalGas its actual incremental costs incurred (fully loaded labor and materials cost).

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